

June, 1859, Morton became bankrupt, the plaintiffs' acceptance remaining [521] in his hands unnegotiated. The assignees took possession of the bill, and paid it into the Bank of England to the credit of the accountant in bankruptcy, for the estate of the bankrupt: and the bill was presented to the plaintiffs' bankers at maturity (July, 1859), and paid by them, the plaintiff being in ignorance of the fact of its having remained in Morton's hands unnegotiated. The account sales of the shipment were received from Melbourne in March, 1860, shewing that the bankrupt's estate had been overpaid to the extent of 269l. 4s. 6d. Under these circumstances, it is submitted, that, inasmuch as Morton himself, if no bankruptcy had supervened, would not have been entitled to claim from the plaintiffs payment of the whole sum of 600l., his assignees could be in no better position. [Williams, J. An acceptance of a bill against a consignment is in effect an advance of so much money upon the goods.] That will, no doubt, be the argument upon the other side. [Willes, J. It is not unusual in these cases to stipulate for a renewal of the bills provided the goods remain unsold when the bills arrive at maturity. We cannot, however, assume that there was any such stipulation here, the case being silent on the subject.]

Hannen, *contra* (a), was stopped by the court.

[522] ERLE, C. J. I am of opinion that the defendants are entitled to judgment. The plaintiffs gave Morton, the bankrupt, their acceptance for 600l. upon the faith of a consignment made through them to their correspondents abroad, with an understanding that this advance was to be repaid out of the proceeds of the goods consigned, any deficiency to be made good by Morton. The plaintiffs paid their acceptance at maturity. Suppose an action had been brought against them by the assignees to recover the amount of the bill, is there any plea which the now plaintiffs could have pleaded in bar of the assignees' claim against them on the bill? It seems to me that there is not. It follows, therefore, that the assignees had a right to receive the fund, and that the plaintiffs have no right to recover back any portion of it in this action.

The rest of the court concurring,
Judgment for the defendants.

[523] KEMP v. NEVILLE. June 12th, 1861.

[S. C. 31 L. J. C. P. 158; 4 L. T. 640; 7 Jur. N. S. 913; 10 W. R. 6 (sub nom. *Ebon v. Neville*). Adopted, *Wildes v. Russell*, 1866, L. R. 1 C. P. 741. See *R. v. Williams*, 1866, 15 L. T. 290; *R. v. Maidenhead Corporation*, 1882, 8 Q. B. D. 352; 9 Q. B. D. 494; *Haggard v. Pelicier*, [1892] A. C. 66.]

A judicial officer is not liable to be sued for an adjudication according to the best of his judgment upon a matter within his jurisdiction: and a matter of fact so adjudicated by him cannot be put in issue in an action against him. —To an action against the vice-chancellor of the university of Cambridge for assaulting the plaintiff, a

(a) The points marked for argument on the part of the defendants were as follows:—

"1. That, upon the facts stated, it does not appear that the defendants are liable to pay to the plaintiffs the sum sought to be recovered, or any part of it.

"2. That the plaintiffs were bound to pay their acceptance for 600l. at maturity, whether in the hands of the bankrupt's assignees or indorsees for value, and that nothing has subsequently occurred to make the defendants liable to refund that which they were at the time entitled to receive:

"3. That, if the plaintiffs were not liable to pay the whole amount of the bill at maturity to the defendants, their exemption from such liability must arise from a right of set-off or mutual credit, and that, by not availing themselves of it at the time, the plaintiffs have lost that remedy, and must prove against the bankrupt's estate:

"4. That, if the true nature of the contract between the bankrupt and the plaintiffs was, that the bankrupt should indemnify the plaintiffs against the consequence of accepting the bill of exchange in the event of the proceeds of the sale of the goods proving insufficient, the plaintiffs would have no right of action against the defendants, but the bankrupt still remains liable to the plaintiffs upon such contract of indemnity:

"5. That, in no case can the action be maintained against the official assignee, the bill having been paid into the Bank of England to the credit of the accountant in bankruptcy, for the estate of the bankrupt."

young female, and imprisoning her in a place called the Spinning House, and compelling her to take off her clothes and put on a prison dress, — the defendant pleaded that, the proctors of the university, acting under the authority of the charter of the university (confirmed by act of parliament), having, upon a certain scrutiny, search, and inquiry in the town and suburbs of Cambridge, found the plaintiff and divers other women assembled together in a certain carriage in company with certain scholars of the university, in a certain public street in the said town, and then reasonably suspecting the plaintiff of evil, that is to say, of being in company with the said scholars for idle, disorderly, and immoral purposes, had as officers of the university, and by command of the chancellor, &c., arrested and apprehended the plaintiff, and brought her before the defendant, then being the vice-chancellor of the university, in order for her examination touching and concerning the premises: whereupon the defendant did then and there examine the plaintiff, and was thereupon satisfied of the matters aforesaid, and that the plaintiff had so been in company with the said scholars for idle, disorderly, and immoral purposes, wherefore the defendant caused the plaintiff to be punished by the imprisonment of her body for a reasonable time in that behalf, to wit, &c., in the place in the declaration mentioned, being a fit and proper and convenient place in that behalf; and that the compelling the plaintiff to take off her clothes, &c., was part of the reasonable discipline of the said place of confinement then usual, &c. — By the charter, which was put in, the chancellor, &c. of the university were empowered “*per seipos, aut per eorum deputatos, officarios, servientes, et ministros, seu per eorum aliquem sive aliquos, de tempore in tempus ad omnia tempora, tam in die quam in nocte, ad eorum beneplacitum, ex nunc in perpetuum, ad faciendum scrutinium, scrutationem, et inquisitionem, tam per diem quam per noctem, quotiescunq. et quandocunq. eis videbitur, expedire in prædictâ villâ Canteburgiæ, et in suburbis ejusdem, &c., de et pro omnibus et publicis mulieribus, prouhis, vagabondis, et aliis personis de malo suspectis, ad dictam villam et suburbia, ferias, mereatus, nundinas et loca prædicta, seu ad eorum aliquem venientes seu confluentes; ac omnes et singulas illas personas quas iidem cancellariis, magistri, et scholares, aut eorum successores, aut eorum deputati, officarii, servientes, et ministri, seu eorum aliqui seu aliquis, super aliquod hujusmodi scrutinium, scrutationem, sive inquisitionem, reas seu suspectas de malo, invenerint puniendi per imprisonment corporum suorum, banitionem, et aliter, prout cancellario dictæ universitatis Canteburgiæ, aut ejus vicemgerenti pro tempore existenti videbitur punire.*” &c. — The plaintiff and several other young women, residents of Cambridge, being found by certain proctors of the university in an omnibus, in the town, in company with certain undergraduates, proceeding to a dance at a village a short distance from Cambridge, took the females to the Spinning House, the usual place of confinement of the university. The plaintiff was there taken before the defendant (the vice-chancellor), who questioned her as to her residence and occupation, and as to who invited her to the party, &c., and ultimately, — without hearing any evidence upon oath, or making any inquiry about the plaintiff of certain persons to whom she wished to refer, and without any warrant in writing, — committed her to the Spinning-House for fourteen days, where she was deprived of her clothes, and forced to wear the prison dress. It was admitted that the defendant, throughout the proceeding complained of, acted *bonâ fide* and according to the best of his judgment and discretion. — Upon these facts, the following questions were submitted to the jury, — first, whether the proctor and the vice-chancellor had reasonable cause of suspicion that the plaintiff was in company with the undergraduates for idle, disorderly, and immoral purposes, — secondly, whether the vice-chancellor duly heard and examined the plaintiff, — thirdly, whether the place of imprisonment and the treatment of the plaintiff therein were proper and reasonable. — The jury found that the proctors had reasonable cause for suspicion; that the defendant had not made due inquiry into the plaintiff's character, and that the punishment was undeserved; but that the complaint of the prison and the treatment therein was unfounded: Held, that, upon this finding, the defendant was entitled to the verdict; for that, as the charter in express terms invested the vice-chancellor with authority to punish by imprisonment or otherwise as he should think fit, he thereby became invested with judicial authority, and a judge of a court of record, and entitled to all the protection attached by law to the judicial office. — Held also, that the jurisdiction to hear and determine and pass

sentence of imprisonment attached when the proctors, being officers of the university, brought before the vice-chancellor for adjudication a person found by them in Cambridge, and apprehended by them as being a person suspected of evil, within the meaning of the charter: and that, as the charter defined no form of proceeding, either for the hearing, or the determination, or the committal, an action of trespass could not be sustained for any of the judicial acts complained of.—Held also that, there being no express provision in the charter on the subject, the vice-chancellor was not bound to hear and examine upon oath: and that the absence of a written warrant for the commitment of the plaintiff afforded no cause of action.

The declaration in this case charged that the defendant caused an assault to be made on the plaintiff, and caused her to be unlawfully imprisoned and kept and detained in prison in a certain gaol or place of confine-[524]-ment commonly called and known by the name of the Spinning House, for a long space of time: and also caused the plaintiff to be forced and compelled to take from her person the clothes which she was then wearing, and caused her said clothes to be taken away from her, and caused her to be deprived of the use and enjoyment thereof for a long space of time, and caused her to be forced and compelled to put on certain other clothes of inferior quality and description, and to wear the same during the aforesaid long space of time, and caused the plaintiff to be in the said gaol or place of confinement forced and compelled to work and labour for divers long spaces of time whilst the plaintiff was imprisoned in the said gaol or place of confinement as aforesaid: whereby the plaintiff was greatly bruised, wounded, and hurt, and was greatly injured and damaged in her reputation and character, and was otherwise greatly injured: and other wrongs to the plaintiff the defendant did: claim 500l.

The defendant pleaded,—first, not guilty.

Secondly, that the chancellor and scholars of the university of Cambridge, from time whereof the memory of man is not to the contrary until the time of [525] making a certain act of parliament made and passed in the 13th year of the reign of Queen Elizabeth (13 Eliz. c. 29), intituled “An Act concerning the several incorporations of the universities of Oxford and Cambridge and the confirmation of the charters, liberties, and privileges granted to either of them,” were a body corporate by various names of incorporation, amongst others, by the name of the Chancellor, Masters, and Scholars of the University of Cambridge, and by that name had succession, and that by the said act it was enacted that the then chancellor of the said university and his successors for ever and the masters and scholars of the same university for the time being should be incorporated and have perpetual succession by the name of the Chancellor, Masters, and Scholars of the University of Cambridge: that the office of proctors of the said university is, and from time whereof the memory of man is not to the contrary was, an antient office, and that the persons for the time being duly holding such office have, and each of them hath, during all the time aforesaid, by custom of and in the said university from time whereof the memory of man is not to the contrary there used and approved, for the preservation of good order and morality amongst the scholars of the said university, visited, and been used and accustomed and of right ought to visit, all and every the public streets and places in the town of Cambridge, and within the precincts of the said university, at all times of the day and night, and have and each of them hath been used and accustomed, and of right ought, to arrest and apprehend all such women as in such their visits they or either of them have or hath found within the limits and precincts aforesaid, who, upon reasonable grounds, have been suspected by the said proctors or either of them to be loose or disorderly women, or who within the limits and precincts [526] aforesaid have been found keeping company with any of the scholars aforesaid in such manner and under such circumstances as upon reasonable grounds to be by the said proctors or either of them suspected of evil, and to take such persons so arrested and apprehended before the vice-chancellor of the said university for the time being, to be dealt with according to law: That the office of vice-chancellor is, and from time whereof the memory of man is not to the contrary was, an antient office of the said university: and that, before and at the time of committing the alleged grievances in the declaration mentioned, the defendant was the vice-chancellor of the said university: and that, from time whereof the memory of man is not to the contrary until the passing of the said act, upon any such women having been so arrested and apprehended and taken before the vice-chancellor of the said university

for the time being as aforesaid, the said vice-chancellor for the time being has by custom of and in the said university from time whereof the memory of man is not to the contrary there used and approved, heard and examined all such women so apprehended and arrested as aforesaid, and, upon being satisfied that such women have then been proved to be loose or disorderly women, or have been found within the limits and precincts aforesaid keeping company with any of the scholars aforesaid, in such manner and under such circumstances as aforesaid, have, whenever to them had seemed meet, caused such women to be punished by imprisonment of their bodies for such reasonable time, and in such convenient prison, and subject to such usual and reasonable discipline, as to the said vice-chancellor for the time being hath seemed meet: That, before and at the time of the alleged grievances, and after the passing of the said act and of the Cambridge Award Act, [527] 1856 (19 & 20 Vict. c. xvii.), one Thomas Samuel Woollaston lawfully held and exercised the said office of proctor of the said university, being the office mentioned in the said last-mentioned act: That the said Thomas Samuel Woollaston, being such proctor as aforesaid, shortly before the committing of the alleged grievances, found the plaintiff within the limits and precincts aforesaid, in one of such his visits as aforesaid: and that the plaintiff then and until after the committing of the alleged grievances was a woman who upon reasonable grounds was suspected by the said Thomas Samuel Woollaston to be a loose and disorderly woman, and who then was found within the limits and precincts aforesaid, keeping company with divers scholars of the said university in such manner and under such circumstances as that she the plaintiff then and until after the committing of the alleged grievances was on reasonable grounds by the said Thomas Samuel Woollaston suspected of evil: Whereupon the said Thomas Samuel Woollaston, so being such proctor as aforesaid, before the committing of the alleged grievances, had arrested and apprehended the plaintiff in order to take her and had then taken her before the defendant, so being such vice-chancellor as aforesaid, to be dealt with according to law; and thereupon the defendant, so being such vice-chancellor as aforesaid, did then and there hear and examine the plaintiff, and was thereupon satisfied that the plaintiff then was a loose and disorderly woman, and then had been found by the said Thomas Samuel Woollaston, so being such proctor as aforesaid, within the limits and precincts aforesaid, keeping company with divers scholars of the said university, for idle, disorderly, and immoral purposes, and did then cause the plaintiff to be punished by imprisonment of her body for a reasonable time in that behalf, to wit, for five days, in the place of confinement [528]—in the declaration mentioned, being a fit and convenient place in that behalf: And that the compelling the plaintiff to take off the clothes as in the declaration mentioned, and compelling her to put on the said other clothes, and to wear the same, and to work and labour, as in the declaration mentioned, then were and each of them was a part of the reasonable discipline of the said place of confinement then used and approved of by the defendant, so being such vice-chancellor as aforesaid; which were the several grievances in the declaration alleged.

Thirdly,—that the chancellor, masters, and scholars of the university of Cambridge, at the time of the granting of the letters-patent thereafter in part set forth, were a body politic, and had succession as in the introductory part of the second plea mentioned, and that Elizabeth then Queen of England, &c., on the 26th day of April in the third year of her reign, by Her Majesty's letters-patent sealed with the great seal of England, bearing date the same day and year, did, for herself, her heirs and successors, grant to the then chancellor, masters, and scholars of the said university and their successors, that it should be lawful for the aforesaid chancellor, masters, and scholars, and their successors, by themselves or by their deputies, officers, servants, and ministers, or by any one or more of them, from time to time and at all times, as well by day as by night, at their good pleasure, from thenceforth to make scrutiny, search, and inquiry as well by night as by day, as often and whensoever it should seem to them expedient, in the aforesaid town of Cambridge, and in the suburbs of the same, and other places in the said letters patent mentioned, of and for all common women, vagabonds, and other persons suspected of evil coming to or assembling at the aforesaid town and suburbs, and other [529] places, or any of them, and all and every the persons which the same chancellor, masters, and scholars, or their successors, or their deputies, officers, servants, and ministers, or any one or more of them, upon any such scrutiny, search, or inquiry, should find guilty or suspected of evil, to punish by imprisonment of their bodies, banishment, and otherwise, as to the chancellor of the

said university or his vice-chancellor for the time being should seem fit, without impeachment, molestation, disturbance, or grievance of her the said Queen Elizabeth, her heirs or successors, or any of them, any statute notwithstanding; and which letters patent the said then chancellor, masters, and scholars duly accepted: That, by a certain act of parliament passed in the 13th year of the said Queen's reign, being the act in the second plea mentioned, it was enacted as in that plea mentioned: and it was in and by the same act, amongst other things, further enacted that the letters-patent as aforesaid should from thenceforth be good, effectual, and available in the law to all intents, constructions, and purposes, to the aforesaid then chancellor, masters, and scholars, and to their successors for ever, as amply, fully, and largely as if the same letters-patent had been repeated verbatim in the said act: That, before the committing of the alleged grievances, Thomas Samuel Woollaston and Edward William Blore, then being officers and servants of the said chancellor, masters, and scholars, and by their command, having, upon a certain such scrutiny, search, and inquiry in the aforesaid town and suburbs of Cambridge, found the plaintiff and divers other women assembled together in a certain carriage in company with certain scholars of the said university, in a certain public street in the said town, and then reasonably suspecting the said plaintiff of evil, that is to say, of being in company with the said scholars for idle, dis[530]-orderly, and immoral purposes, had, as such officers and servants, and by such command, arrested and apprehended the plaintiff, and brought her before the defendant, then being the vice-chancellor of the said university, in order for her examination touching and concerning the premises, the said defendant then being the proper officer and deputy of the said chancellor, masters, and scholars in that behalf: Whereupon the defendant, so being such vice-chancellor as aforesaid, did then and there hear and examine the plaintiff, and was thereupon satisfied of the matters aforesaid, and that the plaintiff had so been in company with the said scholars for idle, disorderly, and immoral purposes: wherefore the defendant did then cause the plaintiff to be punished by the imprisonment of her body for a reasonable time in that behalf, to wit, for five days, in the place of confinement in the declaration mentioned, being a fit and proper and convenient place in that behalf: And that the compelling the plaintiff to take off her clothes she was then wearing, as in the declaration mentioned, and to put on and wear the other clothes in the declaration also mentioned, and the taking away of the said first-mentioned clothes as alleged, and the compelling the plaintiff to work and labour as alleged, then were and each of them was a part of the reasonable discipline of the said place of confinement then used and approved of by the defendant, so being such vice-chancellor as aforesaid: which were the several grievances in the declaration mentioned.

The plaintiff joined issue on the first plea. To the second plea she replied as follows:—The plaintiff, as to the defendant's second plea, admits the statutes in that plea mentioned, and that it was enacted by the statute therein first mentioned as in that plea alleged: and for replication to the said second plea the plaintiff takes issue upon the residue thereof. There was a similar replication to the third plea.

[531] The cause was tried before Erle, C. J., at the sittings at Westminster after last Hilary Term, when the facts which appeared in evidence were in substance as follows:—The plaintiff was a milliner and dress-maker residing with her mother, who was a widow, in Dover Street, Cambridge, and, so far as appeared, was a person of irreproachable character. The defendant, the Hon. and Rev. Latimer Neville, is master of Magdalene College, Cambridge, and at the time when the transactions in question took place was vice-chancellor of the university, and also *virtute officii* a magistrate for the borough of Cambridge.

In the latter part of January, 1860, the plaintiff with several other young women also resident in Cambridge were invited to an evening party which was proposed to be given by some young gentlemen, members of the university, at the De Freville Arms, a respectable house of entertainment at the village of Great Shelford, about four miles from Cambridge, for the purpose of celebrating the accession of one of the party to his degree of B.A. An omnibus was hired for the conveyance of the party, with a small band of music, and to bring them back. Information of what was going on having by some means reached the Rev. Edward William Blore, one of the proctors of the university, that gentleman consulted the senior proctor, the Rev. Thomas Samuel Woollaston, and they with their assistants proceeded to Parker's

Piece, along which the omnibus was expected to pass, and, on seeing it approach, they caused the driver to stop, and one of them, opening the door, asked if any members of the university were there. Two of the party thereupon got out of the omnibus and gave their names and colleges. The omnibus was then conducted with the rest of the party to the Spinning House, a building situate in St. Andrew's Street, Cambridge, which has for many [532] years past been used by the university as a place for confining persons apprehended by the proctors and sentenced to imprisonment by the vice-chancellor for street-walking within his jurisdiction. Arrived at the Spinning House, the plaintiff and her companions were removed from the omnibus and taken into a room adjoining the entrance hall, in which were the two proctors, Woollaston and Blore, who asked the plaintiff her name, address, and occupation, which she gave. The plaintiff was then placed by the matron in a separate cell; and, after being detained there for about half an hour, she was taken back to the room first mentioned, where she found the defendant seated at a table with Messrs. Woollaston and Blore and two other proctors. The defendant then proceeded to examine her, and, having first asked her name, address, and occupation, asked her where she was going when stopped by the proctors. She answered that she was going to a private party at Shelford. The defendant then asked her if she was aware that the gentlemen in the omnibus were members of the university, and what sort of a party it was to have been; to which she replied that she knew that one of the gentlemen was a member, and that she considered the party was to be a respectable one. She was then asked if she was aware that breakfast had been ordered for the next morning; to which she answered in the negative, adding that she was told she would be home by 12 o'clock that night. The defendant then asked her by whom she was invited. She named one of the gentlemen who had been in the omnibus. The plaintiff then asked the defendant if he would allow her to refer for her character to certain ladies in the town for whom she worked. Her request, however, was unheeded; and the defendant sentenced her to be imprisoned in the Spinning House for fourteen days, [533] saying that he considered her case worse than that of the others, inasmuch as she had taken her younger sister (a girl about fourteen) with her.

Of the rest of the party, two were set at liberty, one was sentenced to a week's imprisonment, one to four days, and two to three days each.

The gentleman by whom the party at Shelford was given was also called as a witness, and he wholly disclaimed all intention of impropriety.

The place of confinement was described by the plaintiff and her witnesses to be cold and damp. The plaintiff's clothes were taken from her by the matron, and a prison dress substituted for them. She was not, however, detained longer than the fifth day, when, in consequence of representations made to the defendant by some persons to whom she and her mother were known, she, as well as the rest of the prisoners, was discharged.

The plaintiff further proved that there was no examination of any witnesses upon oath in her presence; nor was she aware of any warrant of commitment having been drawn up. There was in fact no regular warrant prepared at the time; but, on the trial, the counsel for the defendant stated that there was a warrant, but that it was informal, and that a more formal one had been prepared, and would be put in (a).

[534] The defence was based upon the charter granted to the university by Queen Elizabeth in the third year of her reign, and confirmed by the statute of 13 Eliz. c. 29, the 8th section of which charter was as follows:—"Et insuper volumus, et pro nobis,

(a) This warrant of commitment, which had been prepared by counsel long after the commencement of the action, was as follows:—

"To the keeper of the Spinning House or House of Correction in the town of Cambridge.

"Whereas Emma Kemp hath been apprehended by the Rev. Thomas Samuel Woollaston, one of the proctors of the said university, within the limits and jurisdiction thereof, and hath been this day brought before me and charged with being in company with divers scholars of the said university, for idle, disorderly, and immoral purposes, in a certain public street of the town and suburbs of Cambridge, and within the precincts of the said university; which charge, as well upon the information of the said proctor, as upon the examination of the said culprit, and after having heard

hereditibus et successoribus nostris, per presentes concedimus prefatis cancellario, magistris, et scholaribus, et successoribus suis, in perpetuum, quod bene licebit prefatis cancellario, magistris, et scholaribus, et successoribus suis, per seipsos, aut per eorum deputatos, officarios, servientes, et ministros, seu per eorum aliquem sive aliquos, de tempore in tempus ad omnia tempora, tam in die quam in nocte, ad eorum beneplacitum, ex nunc in perpetuum, ad faciendum scrutinium, scrutationem, et inquisitionem, tam per diem quam per noctem, quotiescunq. et quodocunq. eis videbitur expedire in predictâ villâ Cantebriegiæ, et in suburbis ejusdem, et in Barnewell et Sturbridge predictis, de et pro omnibus et publicis mulieribus, pronubis, vagabondis, et aliis personis de malo suspectis, ad dictam villam et suburbia, ferias, mercatus, nundinas, et loca predicta, seu ad eorum aliquem venientes seu confluentes; ac omnes et singulas illas personas quas iidem cancellarius, magistri, et scholares, aut eorum successores, aut eorum deputati, officarii, servientes, et ministri, seu [535] eorum aliqui seu aliquis, super aliquod hujusmodi scrutinium, scrutationem, sive inquisitionem, reas seu suspectas de malo invenerint, puniendi per imprisonment corporum suorum, banntionem, et aliter, prout cancellario dicta universitatis Cantebriegiæ, aut ejus vicemgerenti pro tempore existenti, videbitur punire, absq. impetitione, molestatione, perturbatione, seu gravamine nostri hereditum vel successorum nostrorum, aut aliquorum officiariorum seu ministrorum, vel alicujus officarii seu ministri nostris hereditum vel successorum nostrorum seu eorum alicujus, statuto sive acta parlamenti jam edito seu in posterum edendo in aliquo non obstante," &c. &c.

The defendant and the Rev. Mr. Blore were examined: and the latter justified his suspicion of the intention of the parties by the circumstances under which they were found and apprehended, and the antecedents of some of the young women.

It was also proved that the Spinning House was the usual place of imprisonment of the university, and was subject to the regulation of the secretary of state, and visitation of the government inspector.

The contention on the part of the plaintiff at the trial was, that the charter did not justify the arrest and incarceration of the plaintiff, there being nothing to shew that she was a person of loose or immoral character, or that she had been guilty of any offence punishable by law; that the proceeding before the vice-chancellor, no witnesses being called to prove the charge alleged against the plaintiff, and no opportunity being offered to her to defend herself, was oppressive and illegal; and that her commitment without warrant was a gross and unconstitutional violation of the law. It was further contended that the Spinning House was not a fit and proper gaol for the vice-chancellor to commit to; and that the depriving the plaintiff of her [536] clothes, and substituting the prison garb, was an unreasonable and improper violation of the liberty of the subject. It was, however, admitted by the plaintiff's counsel that the vice-chancellor had throughout the proceedings complained of acted bonâ fide and according to the best of his judgment and discretion.

On the part of the defendant, it was submitted, that, assuming the evidence given on the part of the plaintiff to be true, it sustained all the material allegations in the defendant's pleas; and that the vice-chancellor, having acted throughout in the capacity of judge of a court of record, and having as such adjudicated to the best of his judgment upon a matter within his jurisdiction brought before him for judicial determination, no action could be maintained against him in respect of anything so done by him, however mistaken he might have been either in respect of fact or of law.

The learned judge, reserving leave to the defendant to move to enter a verdict for him upon this ground, left the case to the jury, elaborately reviewing the facts and the arguments urged on the one side and on the other, and laying down the law substantially as follows:—

Before I proceed to consider the questions of law which are raised by the record,

what the said culprit had to allege in her defence, I did adjudge to be true: These are, therefore, to require and command you to receive into your custody the said culprit, and her safely to keep in your said Spinning House for fourteen days. Given under my hand and seal the 30th day of January, 1860.

“LATIMER NEVILLE, Master of Magdalene College, and Vice-Chancellor of the University of Cambridge.”

and upon which your verdict will depend, I will draw your attention to that which was last alluded to by the counsel for the plaintiff, viz. whether the vice-chancellor could lawfully commit the plaintiff without a warrant; and whether the Spinning House was a fit and convenient place for him to commit to, and whether the change of the plaintiff's clothes to the prison dress was reasonable discipline. As to the committing without a warrant, it is my duty to tell you that no warrant at all was necessary, but that the vice-chancellor had authority to hear the parties, and to make the committal by word [537] of mouth. As to whether the gaol was a fit and proper place, and the change of clothes a reasonable discipline, I shall leave you to say: but still I should submit to your consideration, that, if the authorities at Cambridge have the right to commit, and the place in question has been a known prison of the university as far back as memory can go, and that prison is regulated by the secretary of state and under the surveillance of the government inspector, it would be a very strong thing to say that the vice-chancellor of the university can be made liable in trespass for committing a party to a gaol so regulated and so inspected. Whatever may be the result of your opinion upon the two main points, I will ask you to say what damages you think the plaintiff entitled to in case the vice-chancellor has not power to commit without a warrant: and, in that case, I will reserve leave to the plaintiff to move to enter the verdict for her for such damages as you may contingently assess.

I now proceed to address myself to the main points for your consideration. The plaintiff complains that she was unlawfully imprisoned by the defendant. The defendant for his justification relies upon the charter of Queen Elizabeth, which, being confirmed by act of parliament, is as much the law of the land as any other law, — that is, for the local government of Cambridge. Now, by the words of that charter or law, it is provided, amongst other things, that “it shall be lawful for the vice-chancellor and his successors, by themselves and by their deputies and servants from time to time, as well by night as by day, at their pleasure, to make scrutiny, search, and inquiry in the town of Cambridge and in the suburbs for all common women, vagabonds, and other persons suspected of evil, coming into the town:” and then the charter goes on to say that all persons who upon such search shall be [538] found guilty or suspected of evil, they may imprison by their bodies as they shall think fit. The reason of the law it is only material to consider in so far as it bears upon its interpretation. Considering the age and condition of the persons who are assembled at the university, it is obvious that somewhat stringent regulations were necessary to protect and control their intercourse with the rest of the world while intrusted to its care,—and especially to guard them against that species of attraction to which the words of the charter I have adverted to more particularly point: and this may well account for the very wide expressions used, not confining it to common women and vagabonds,” but extending the power given to the vice-chancellor and his officers to “persons suspected of evil.” I need not, however, commit myself to an exact exposition of the law contained in this charter, because the legal advisers of the defendant have expressly stated in the pleas which have been put upon the record the construction of it upon which they rely. The allegation in the third and more material plea is, that the proctors, “being officers and servants of the said chancellor, masters, and scholars, and by their command, having, upon a certain scrutiny, search, and inquiry in the aforesaid town and suburbs of Cambridge, found the plaintiff and divers other women assembled together in a certain carriage, in company with certain scholars of the said university, in a certain public street in the said town, and then reasonably suspecting the plaintiff of evil, that is to say, of so being in company with the said scholars for idle, disorderly, and immoral purposes, had, as such officers and servants, and by such command, arrested and apprehended the plaintiff, and brought her before the defendant, then being the vice-chancellor of the said university, in order for her examination touching and concerning the premises,” &c.

[539] [His Lordship then proceeded to observe upon the evidence to support that plea, remarking that all the material allegations therein were established by the statement of the plaintiff herself, except that which related to the plaintiff's being found in company with the scholars for idle, disorderly, and immoral purposes, and so being reasonably suspected of evil: and he told them, that, in order to sustain the plea, it was not necessary that there should have been a preconcerted intention on the part of all or any of the parties concerned to commit any immorality: but that it was enough if the circumstances in which they were found were such as fairly to

lead to the belief on the part of the proctors that immorality was likely to result therefrom.]

A great deal has been said by the counsel for the plaintiff about the vice-chancellor not having heard or examined anybody on oath. For the purpose of to day, I lay it down to you as law that the vice-chancellor was not bound to administer an oath, and that the information of the proctors and the examination of the plaintiff herself was a sufficient hearing and examination to warrant him in committing her to prison as he did.

His Lordship concluded by leaving three questions to the jury,—first, whether the proctors and the vice chancellor had reasonable cause of suspicion that the plaintiff was in company with the under-graduates for idle, disorderly, and immoral purposes, —secondly, whether the vice-chancellor duly heard and examined the plaintiff,—thirdly, whether the place of imprisonment and treatment of the plaintiff therein were proper and reasonable.

The jury, after considerable hesitation, and after a long discussion had taken place between them and the court and the respective counsel, found that the proce-[540]-tors had reasonable cause for suspicion; and, in respect of the hearing and examination of the plaintiff, that the defendant had not made due inquiry into her character, and that the punishment was undeserved: but that the complaint of the prison and the treatment therein was unfounded.

After some further discussion as to the effect of this finding of the jury, his Lordship directed a verdict to be entered for the plaintiff, at the same time intimating an opinion that it was an imperfect verdict. The jury assessed the damages at 40s.

Edwin James, Q. C., in Easter Term last, moved, on behalf of the plaintiff, for a new trial on the ground of misdirection on the part of the learned judge in telling the jury that a warrant in writing for the commitment of the plaintiff was not necessary (*Ex parte Gray*, 2 D. & L. 539); and also in the construction put upon the charter (as to which he submitted that “persons suspected of evil” did not mean “persons who had placed themselves in such a position that their acts might result in evil,” but “persons whose previous conduct and character rendered them objects of reasonable suspicion,” which was not pretended to be the case with the present plaintiff); and in omitting to tell the jury that there was no legal hearing and examination of the plaintiff by the defendant before her commitment (as to which he submitted that every hearing must be conducted according to known legal principles, the witnesses in support of a charge being examined in the presence of the accused,—a right recognized by the 2nd section of the Prisoners’ Counsel Act, 6 & 7 W. 4, c. 114, and the case of *The King v. Crowther*, 1 T. R. 125); and also in omitting to tell the jury that the gaol in question was a private gaol, and that the defendant had no right to commit the [541] plaintiff thereto. He also moved for a new trial on the ground of the inadequacy of the damages.

The court suspended its decision upon this motion until the defendant should have moved to enter the verdict for him pursuant to the leave reserved to him at the trial, —as to which, vide ante, p. 536.

Sir Fitzroy Kelly, Q. C., on a subsequent day, moved on the part of the defendant, for a rule to shew cause why the verdict should not be entered for him upon the above finding. He submitted that the imprisonment complained of was a judicial act by the defendant, a judge of a court of record, acting bona fide in a matter in which he had jurisdiction, and therefore not the subject of an action, even though he erred in point of fact or of law, or had been wanting in prudence or discretion: and he referred to *Gronowelt v. Burwell*, 1 Salk. 200, 396, 3 Salk. 354, 12 Mod. 386, Holt, 184, 395, Comb. 76, 1 Lord Raym. 213, 454, Carth. 421, 491, *Hamond v. Howell*, 1 Mod. 184, 2 Mod. 218, *Garnett v. Ferrand*, 6 B. & C. 611, 9 D. & R. 657, and *Ex parte Death*, 18 Q. B. 647.

Erle, C. J., suggested that a rule nisi should be granted upon the points urged by Sir F. Kelly, and that, upon the discussion of that rule, the plaintiff should be at liberty to urge the several points upon which she relied, —saving as to the amount of damages. The rule was ultimately drawn up as follows:—

“It is ordered that the plaintiff, upon notice of this rule to be given to her or her attorney, shall shew cause to this court, on, &c., why the verdict found on the trial of this cause at, &c. should not be set aside, and instead thereof a verdict be entered for the defendant, pursuant to leave reserved, on the grounds,—[542] first, that the

defendant acted as a judge, and is not liable to an action, secondly, that the finding of the jury, except where in favour of the defendant, is immaterial: the said plaintiff being at liberty, on such cause being shewn as aforesaid, to raise any points contended for by the plaintiff on the motion already made to the court on behalf of the said plaintiff,—each of the said parties being at liberty to appeal on all questions fit for the court of error: And it is further ordered, that, at the time of such cause being shewn as aforesaid, the said plaintiff shall be at liberty to insist,—first, that the judge presiding at the said trial misdirected the jury in holding that a warrant in writing was not necessary,—secondly, that the said judge put a wrong construction upon the charter,—thirdly, that he ought to have told the jury that there was no legal hearing or examination by the vice-chancellor,—fourthly, that he ought to have told the jury that the prison in question was a private gaol, and that the vice-chancellor had no right to commit to it: the said plaintiff to be in the same position as to setting aside the said verdict found in this cause, or appealing to the court of error, as though a separate rule had been granted by the court to the said plaintiff on the grounds above mentioned."

Lush, Q. C., Welsby, and Couch, in Easter Term last, shewed cause. They submitted, that the legal effect of the finding of the jury was, a negation of the material part of the third plea, to sustain which it was essential for the defendant to shew that he had duly heard and examined and was satisfied of the guilt of the accused (*The King v. Simpson*, 1 Stra. 45, *Capel v. Child*, 2 C. & J. 558, per Lord Tenterden in *Basten v. Carter*, 3 B. & C. 649, 652, 5 D. & R. 558): that there cannot legally be an imprisonment without a record or a con-[543]-viction and a warrant (Paley on Convictions, 215, 388, 1 Hale's P. C. 583, *The King v. Beck*, 1 Stra. 127, per Yates, J., in *Strickland v. Ward*, 7 T. R. 631, n., 633, n., *Ex parte Bassett*, 6 Q. B. 481, 1 New Sess. Cas. 337, *In re Nesbitt*, 1 New Sess. Cas. 366, *Prickett v. Gratrix*, 8 Q. B. 1021, 2 New Sess. Cas. 429), which warrant must exist at the time, and cannot be drawn up afterwards (*Mostyn v. Fabrigas*, 1 Cowp. 161, *Hutchinson v. Lowndes*, 4 B. & Ad. 118), though a conviction may: that the charter granted by Queen Elizabeth to the university, or the statute which confirmed it, did not invest the vice-chancellor with the authority of a judge of a court of record, nor was the plea framed on that supposition: that, though ordinarily none but a court of record can punish by fine and imprisonment (*Dr. Bonham's case*, 4 Co. Rep. 355, *Beecher's case*, 8 Co. Rep. 260), yet the mere power to fine and imprison does not per se constitute a court of record: and that the Spinning House was not a legal place of imprisonment, —Bacon's Abridgment, Gaol and Gaolers (A.); and see the 23 H. 8, c. 3, and 5 & 6 W. 1, c. 38 (a).

Sir Fitzroy Kelly, Q. C., O'Malley, Q. C., and Denman, Q. C., in support of the rule, contended in substance as follows: —That the defendant was entitled to a verdict upon the evidence as it stood at the close of the plaintiff's case: that the vice-chancellor acted as a judge of a court of record, though with a limited jurisdiction, and was protected in all he did: and that the objections urged on the part of the plaintiff, whether in an action for false imprisonment, or on a motion for [544] a writ of habeas corpus to discharge the plaintiff from custody, were equally void of foundation, —citing *Grinnin v. Poole*, 2 Lutw. 935, 1560, *Greenwell v. Burwell*, 1 Salk. 200, Comb. 76, 1 Lord Raym. 454, Carth. 421, 491, *Godfrey's case*, 11 Co. Rep. 42, *The case of Conspiracy* (*Floyd v. Barker*), 12 Co. Rep. 24, *Bushell's case*, 1 Mod. 119, *Hamard v. Howell*, 1 Mod. 184, 2 Mod. 218, *Mostyn v. Fabrigas*, 1 Cowp. 161, *Cabler v. Halkett*, 3 Moore's P. C. 28, *Tuaffe v. Lord Downes*, 3 Moore's P. C. 36, n., *Doswell v. Impey*, 1 B. & C. 163, 2 D. & R. 350, *Dicas v. Lord Brougham*, 6 C. & P. 249, *Case of the Marshalsea*, 10 Co. Rep. 64, *Houlton v. Smith*, 14 Q. B. 841, *Garnett v. Ferrand*, 6 B. & C. 611, 9 D. & R. 657, *Tosor v. Child*, 7 Ellis & B. 377, *Care v. Mountain*, 1 M. & G. 257, 1 Scott, N. R. 132, *Hutchinson v. Lowndes*, 4 B. & Ad. 118, *Ackerley v. Parkinson*, 3 M. & Selw. 411, *The King v. Barker*, 1 East, 185, *Massey v. Johnson*, 12 East, 67, 82, *Gray v. Cookson*, 16 East, 13, *Brittain v. Kinnaird*, 1 Brod. & B. 433, 4 J. B. Moore, 50, Hawk. P. C., book 2, c. 16, ss. 3, 12, 3 Bl. Com. 24, 25: That the finding that the vice-chancellor

(a) There was a second action arising out of the same transaction, *Erett v. Neville*, which it was arranged should abide the event of *Kemp v. Neville*. Upon the argument of the rule in this case, Naylor (with whom was Hawkins, Q. C.) was heard on behalf of the plaintiff in that case.

did not make due inquiry as to the plaintiff's character of the persons to whom she referred, was altogether idle and immaterial; for that, assuming he was wrong in this respect, it would amount to nothing more than an improper rejection of evidence, which never could be suggested to form a ground of action against the judge: That, as to the warrant, if necessary, the existence of a valid warrant at the time would be presumed, and that, at all events, the formal warrant afterwards drawn up was sufficient: That, as to the prison, if that was a question for the jury, they had disposed of it by finding that it was a reasonably fit and proper place, and, if a question of law, the evidence shewed it to be a legal one: *Smith v. Hillier and Clerke*, Cro. Eliz. 167, *Es* [545] *parte Evans*, 8 T. R. 172: And that the mere commitment to a wrong gaol was not the subject of an action. Com. Dig. Imprisonment (B.).

Cur. adv. vult.

ERLE, C. J., now delivered the judgment of the court:—

In this case it has been contended, on behalf of the defendant, that the rule to enter a verdict for him should be made absolute, either on the leave reserved at the trial upon the close of the plaintiff's case, or on the finding of the jury: and we are of opinion that he is entitled to succeed on each of these grounds.

The declaration was for imprisonment.

The plea set out the charter, which impowered the university, by their officers, to make search in the town of Cambridge for common women and other persons suspected of evil, and all such persons as they should, upon such search, find guilty or suspected of evil, to punish by imprisonment or otherwise as to the chancellor or vice-chancellor should seem fit. The plea then proceeded to allege that the charter aforesaid had been confirmed by statute as fully as if it had been repeated verbatim therein: and that the proctors, by command of the university, on a search in Cambridge, found the plaintiff and other women assembled in a carriage, in company with some scholars of the university, and then reasonably suspecting the plaintiff of evil,—that is, of so being in company with the said scholars for idle, disorderly, and immoral purposes,—apprehended the plaintiff, and brought her before the defendant, the vice-chancellor, in order for her examination touching the premises; whereupon the defendant did hear and examine the plaintiff, and was satisfied of the matters aforesaid, and caused her to be punished by imprisonment in a fit and proper place of confinement.

[546] The replication admitted the statute, and took issue upon the rest of the plea.

The plaintiff in her evidence stated that she had been apprehended under the circumstances alleged in the plea, and brought before the vice-chancellor by the proctors, and that the vice-chancellor made inquiries of her respecting the said circumstances, and heard her answers and her request that reference might be made to some persons for her character, and then pronounced sentence of imprisonment for fourteen days in the Spinning House, where she was subjected to the treatment complained of in the declaration, the same being, as far as appeared, the usual course. She also stated that she had no disorderly or immoral purpose: that the charge was not made, and the witnesses were not examined, in her presence; that no inquiry was made of the persons to whom she had referred for her character; that there was no examination of any one upon oath; and that there was no warrant of commitment, as far as appeared to her.

The other witnesses for the plaintiff corroborated those statements, and added nothing that is relevant to the present inquiry.

An admission was made by the plaintiff's counsel, that the defendant, as vice-chancellor, had throughout the proceedings complained of, acted according to the best of his judgment and discretion.

The counsel for the defendant thereupon contended, that, on the assumption of this evidence being true, all the material allegations in the plea, which were put in issue by the replication, were proved thereby; that there was no question of fact for the jury, and that therefore they ought to be directed to give their verdict for the defendant.

The substance of the contention was, that this evidence proved that the vice-chancellor acted throughout [547] in the capacity of a judge, holding office under the charter, and adjudicating, according to the best of his judgment, upon a question within his jurisdiction, brought before him for judicial determination; and that, if this was true in fact, it followed that in law no action of trespass could be sustained

against him, as judge, for anything so done by him in that capacity, although there might be a mistaken opinion in respect either of fact or of law.

Upon this point leave was reserved to the defendant to move to enter the verdict for him.

In pursuance of this leave, this rule was obtained; and, after careful attention to the arguments and authorities, we have come to the conclusion that it should be made absolute.

We are of opinion, that, as the charter in express terms invests the vice chancellor with authority to punish, by imprisonment or otherwise as he should think fit, he thereby became invested with judicial authority, and a judge of record, and entitled to all the protection attached by law to the judicial office: and, although it does not appear to us to be essential for the defence to rely on his being a judge of a court of record, we are of opinion, that, when he was so impowered, he thereby became a judge of a court of record, entitled to the protection attached by law to that office. One important practical consequence resulting from the vice-chancellor being considered as a judge of a court of record is this, that the proceedings before him can be proved or disproved by the record thereof only, which record may be made up at any time, whenever it may become necessary to establish an issue duly raised.

In the present case, the plaintiff took issue upon the facts tried by a jury, and did not take any issue upon the record of the alleged proceedings, which [548] would be properly triable by the court upon inspection of the record after it had been brought here by certiorari.

We are further of opinion that the jurisdiction to hear and determine and pass sentence of imprisonment attached when the proctors, being officers of the university, brought before the vice-chancellor for adjudication a person found by them in Cambridge, and apprehended by them there as being a person suspected of evil, within the meaning of the charter; that, as the charter defines no form of proceeding, either for the hearing, or the determination, or the committal, an action of trespass could not be sustained for any of the judicial acts complained of. The authorities support this opinion.

The case of *Groenvelt v. Burwell*, 1 Ld. Raym. 454, bears a strong analogy to the present. There, the declaration was for false imprisonment. The justification shewed that a charter of Henry VIII., confirmed by statute, invested the censors of the College of Physicians with authority to supervise all physicians practising medicine in London, and to punish them for bad practice, by fine and imprisonment; that the plaintiff used the faculty of medicine in London, and attended a patient, and treated her unskilfully; that a complaint was made to the censors, who inquired into it, and heard witnesses and the plaintiff, and adjudged him guilty of bad practice, and sentenced him to imprisonment. The plaintiff argued that the plea was bad because it did not shew sufficient jurisdiction in the censors. But Holt, C. J., delivering the judgment of the court decided that the censors had entitled themselves to a sufficient jurisdiction,—first, over the person of the plaintiff, because he had practised in London,—secondly, over the subject-matter, viz. the unskilful administration of physic,—thirdly, over the fact for [549] which he was punished, because it was committed within the jurisdiction, viz. in London: and he goes on to say, that, where a man has jurisdiction over another man in all these particulars, it is apparent, that, whether the matter of fact be such as is alleged or not, it is not traversable, but the plaintiff is concluded. This judgment applies to the plea now in question. The vice chancellor has the same power of adjudication over the persons apprehended in Cambridge by the proctors, as the censors had over persons practising medicine in London; also the same power over the subject-matter, viz. the liability of the plaintiff to be apprehended on the ground stated in the plea, as the censors had over the unskilful administrators of physic; also the same power in respect of the place, viz. Cambridge, as the censors had in respect of London. Lord Holt further says that the fact of which the plaintiff is convicted is not traversable, because the authority of the defendants is absolute to hear and determine the offence, and that persons who are judges by law shall not be liable to have their judgments examined in actions brought against them. He further shews, by authorities, that a jurisdiction to fine and imprison, created by statute, is a court of record. Upon these principles, he answers all the objections made in that case to the course of proceeding, and, among others, the objection that the witnesses had not been examined on oath.

The rule that a judicial officer cannot be sued for an adjudication according to the

best of his judgment upon a matter within his jurisdiction, and also the rule that a matter of fact so adjudicated by him cannot be put in issue in an action against him, have been uniformly maintained. We shall, therefore, only refer shortly to some other cases shewing the variety of occasions on which these rules have been applied: and [550] we begin with the justly-celebrated judgment of Powell, J., in *Gargrave v. Poole*, 2 Lutw. 387. There, the defendant was held not to be liable in trespass, although, as judge of an inferior court, he had caused the plaintiff to be arrested in an action where the cause of action arose out of his jurisdiction: and, although the *capias* was issued without previous summons, and was not made returnable at a certain time, yet he was justified because he acted as judge in a matter over which he had reason to believe that he had jurisdiction. In *Floyd v. Barker*, 12 Co. Rep. 223, the judge and the grand jury were held not liable to be sued in the Star Chamber for a conspiracy in respect of their acts in court, in convicting of felony. In *Hamond v. Howell*, 2 Mod. 219, the judge who committed for an alleged contempt, under a warrant shewing that in truth no contempt had been committed, was held not liable in trespass, because he had jurisdiction over the question, and his mistaken judgment, together with the void warrant founded thereon, was no cause of action. In *Coe v. Mountain*, 1 Scott, N. R. 132, 1 M. & G. 257, the justice who committed the plaintiff on an information which contained no legal evidence either of any offence or of the plaintiff's participation in that which was supposed to be an offence, was held not to be liable in trespass, because the information was considered to be directed against an offence over which the justice had jurisdiction, if there had been any proof thereof. In *Metcalf v. Hodgson*, Hutton, 120, the defendant was held not liable for taking insufficient bail in a cause in a local court, because in that court it was a judicial act by him. In *Garnett v. Ferrand*, 6 B. & C. 615, 9 D. & R. 657, the coroner who removed the plaintiff from the place of an inquest was held not liable in trespass, as the removal was ordered by him in a [551] judicial capacity. In *Toner v. Child*, 7 Ellis & B. 377, the churchwarden was held not liable for refusing a lawful vote in a vestry, because, although he was acting partly in a ministerial capacity in receiving the votes, yet he was also acting partly in a judicial capacity in refusing a vote, and in that capacity he was not liable for a mistake, if he acted according to the best of his judgment. In *Culder v. Halkett*, 3 Moore, P. C. 28, the magistrate having jurisdiction over Asiatics in Bengal, but not over Europeans, was held not liable in trespass for an apprehension of the plaintiff under a warrant issued by him, he not knowing the plaintiff to be European. The Privy Council say that trespass will not lie for a judicial act without jurisdiction, unless the judge had the means of knowing the defect of jurisdiction: and it lies on the plaintiff in every case to prove that fact. In *Houlden v. Smith*, 14 Q. B. 841, the judge of the county-court was held liable in trespass because he was within the exception thus laid down, and had the means of knowing that he had no jurisdiction. In *Tuaffe v. Lord Downes*, 3 Moore, P. C. 36, n., the judge was justified by a plea in trespass shewing a warrant issued by him in his capacity of judge, although the plea did not shew that the warrant was lawful, but was purposely confined to the right of a judge to protection. See the judgment of Fox, J., *id.* 50.

Throughout these cases, and many others, the vital importance of securing independence for every judicial mind is earnestly recognized. The principle applies in its full extent to the judicial duty to be performed by the vice chancellor, and he is therefore entitled to the same protection. As the defendant had jurisdiction in respect of the matter, and the person, and the place, it does not appear to us to be essential to rely on his being a judge of a court of record: but we add [552] some further authorities shewing that the power to imprison made him a judge of record.

The statute of Westminster 2 empowered certain auditors to imprison bailiffs who should be in arrear in their accounts. Lord Coke says by this act the auditors are judges of record: 2 Inst. 380. In *Godfrey's case*, 11 Co. Rep. 43 b., it is said no court can fine or imprison which is not a court of record. In *Beecher's case*, 8 Co. Rep. 58, it is said, "Nulla curia quæ recordum non habet potest imponere finem, neque aliquem mandare carceri, quia ista spectant tantummodo ad curias de recordo." In the report of *Greenwell's case*, under the name of *Dr. Greenwell v. The College of Physicians*, 12 Mod. 388, it is said, that, wherever there is a power de novo created by parliament to fine and imprison, either of these two makes it a court of record. Although in *Dr. Bonham's case*, 8 Co. Rep. 107, the same principle is not affirmed; yet all that Lord Coke says there extrajudicially after deciding that the action lay, has been doubted by Lord

Holt in *Groenvelt's case*, and attributed to the desire of Lord Coke to support a graduate of Cambridge, and to prevent what he considered an affront of the university, which must be venerated.

The plaintiff's counsel, in shewing cause against this rule, relied mainly on objections in relation either to the hearing, or the warrant, or the prison: and we proceed to advert to each of them in their order.

In respect of the hearing, it appeared that the plaintiff stated what she chose in answer to inquiries concerning the charge; that the vice-chancellor received information from the proctors without oath; and that the persons to whom the plaintiff referred were not sent for. As to the inquiries addressed to the plaintiff, they seem to us to be reasonable, in order to give her an opportunity of answering or explaining the facts. After [553] hearing her answers, the vice-chancellor might with reason be satisfied that the facts existed on which the proctors acted, and was justified in adjudicating thereon. As to receiving information not upon oath, there is no express provision in the charter enabling the vice-chancellor to administer an oath; and the cases shew that it was not for this purpose essential to do so. In *Dr. Groenvelt's case*, the objection was made: but Lord Holt was clear that the omission to hear evidence upon oath would not make the defendant liable in trespass: 1 Lord Raym. 472. In *Busten v. Carew*, 3 B. & C. 653, 5 D. & R. 558, the objection was made that the magistrates, acting judicially, must proceed on evidence given under the sanction of an oath: but the court decided against it, and held that, where the statute creating the jurisdiction did not direct the justices to make inquiry upon oath, the court could not require it to be done. In that case, the statute related to vacant possession, to be ascertained in great measure by personal inspection, and so within the knowledge of the justices. The jurisdiction here in question relates to matters supposed to come within the observation of the officers of the university, upon a search properly made by them, and also supposed to require a summary interference on their part. Unless the legislature had expressly declared it, we should not presume an intention to make evidence upon oath essential for this purpose. With respect to the objection that the defendant did not send to the persons referred to by the plaintiff for her character, he was not under any legal obligation so to do; it was a matter for his own discretion; and, if he acted therein according to the best of his judgment, as it was admitted that he did, his omission to make this inquiry was no ground for maintaining trespass. We must add that it would in our opinion be most inconvenient and objectionable that the validity of judicial proceedings should depend on the opinion of a jury whether there had been a sufficient hearing of the parties: and, indeed, as we have already observed (ante, p. 548), the question whether there has been such a hearing, must, in the case of a court of record, be decided conclusively by the record itself.

With respect to the warrant, it was proved that a writing was made when the plaintiff was committed: but that writing was not produced by the defendant when called for, after notice to produce: and we assume that it was void as a warrant. We have before observed that, in *Hamond v. Howell*, 2 Mod. 218, the warrant was void on the face of it: so it was in *Groenvelt v. Burwell*: for, in each case, the prisoner had been discharged by habeas corpus: nevertheless, the action did not lie in either: therefore, if a void warrant is the same as no warrant, the absence of a warrant would not sustain the action. We would further observe that all judges of record have power to commit to the custody of their officer, *sedente curia*, by oral command, without any warrant made at the time.* This proceeds upon the ground that there is, in contemplation of law, a record of such commitment, which record may be drawn up when necessary: *Throgmorton v. Allen*, 2 Roll. Abr. Trespass, C., 558; and see the judgment of Parke, B., in *Watson v. Bodell*, 14 M. & W. 70. Indeed, for a like reason, no warrant is required for the execution of a sentence of death: 2 Hale's P. C. c. 57, p. 409. The rule thus established seems peculiarly applicable to the case of a committal to the gaol peculiarly appropriated to the court, as is the present case. A warrant seems no more necessary or useful, under those circumstances, than would a written authority be from the keeper of the gaol to the warder who locks up the cell. Therefore, upon this ground also, the defendant is entitled to succeed, [555] the vice-chancellor being a judge of record. Again, it has been held that a prisoner is in lawful custody, although committed to a prison for the purpose of being again brought up for re-hearing, without

* See *Ex parte Fernandez*, ante, p. 3, and the authorities there referred to.

any warrant, commitment, or written authority. One Gooding had assisted a prisoner, so committed, to escape, and, being indicted therefor, contended that the custody was not lawful on that account, and, if so, there was no offence: but the judges decided unanimously that the custody was lawful, notwithstanding there was no writing: *The King v. Gooding*, cited in *Davis v. Copper*, 10 B. & C. 34, 5 M. & R. 53. Now, the jurisdiction under the charter is left largely to the discretion of the vice-chancellor; and an imprisonment thereunder may be thought to be in closer analogy with a commitment to suppress immediate disorder, and for further inquiry, than with a commitment in execution of a sentence for a definite crime. The description of the offence is extremely undefined, and the power is, to imprison, not only those who are guilty, but also those who are suspected of evil. In trusting this wide discretion to the university, the legislature must have considered that it would be exercised only according to need, for suppressing immediate disorder: and it seems essential for its reasonable exercise that there should be power to make further inquiry by the officers of the university, and to remit the imprisonment whenever the result of such inquiry should make it right so to do, as was the case with the present plaintiff. It is not, however, necessary to pursue this subject further. Suffice it to observe that the proposition advanced in argument, that the law requires a warrant in every case of commitment, is clearly erroneous. We therefore are of opinion that a committal in the exercise of this peculiar jurisdiction, where no special method is directed by the statute, although it was not [556] shewn to be made under a warrant, gives no cause of action. The case of *Hutchinson v. Lowndes*, 4 B. & Ad. 118, was relied on for the plaintiff to prove the contrary. There, the defendant was held liable in trespass because he committed the plaintiff to prison orally, without any warrant in writing, and kept him in prison beyond a time reasonably required for making out a warrant: but the ground of the judgment is expressed to be, because the statute which created the special authority under which the committal was made also enacted that the authority so created should be exercised by making a warrant in writing. The decision, confined to that ground, is, by implication, an authority against an action of trespass for a commitment without a warrant, where the statute does not enact that the newly-created authority shall be exercised by warrant, and where there is no implication that the legislature intended to make a warrant essential. We should further observe, in respect to *Hutchinson v. Lowndes*, that the plea was the general issue by statute; but, if the justification had been pleaded in extenso, as here, the plaintiff could not have recovered for the excess of jurisdiction in imprisoning beyond the time so reasonably required, without a special replication, or a new assignment of excess. So, if the plaintiff here relied on any excess beyond the justification, she could not avail herself of it without so pleading.

With respect to the objection that the place of imprisonment was unlawful, because it was not proved to be a common gaol, that also appears to us to be unfounded. In support of it the plaintiff relied on the general rules stated in Bacon's Abridgment Gaol and Gaoler (A.), that gaols can only be erected by act of parliament, and on the statute of Henry IV., requiring a commitment to be made to a common gaol, and on the ab-[557]-sence of any grant of a gaol to the university. But, considering the purpose for which the jurisdiction was created, and the nature of the fact for which the party was to be imprisoned, and referring to the observations before made on this point in relation to the absence of a warrant, and considering also that the place of confinement appeared to be the accustomed place used for that purpose by the university, we are bound to presume the usage to be lawful till the contrary is shewn,—which was not done here. There may be a lawful gaol in the keeping of a subject, by prescription or grant: see 2 Inst. 100, and the statute 19 H. 7, c. 10, giving the custody of all the King's gaols, prisons, and prisoners to the sheriffs (a), and putting an end to many gaols held by individuals, except all gaols whereof any person or corporation have the keeping of estate of inheritance or by succession. It well consists with history (see 4 Inst. 255), and the evidence in this cause, that the university had, at the time of that statute, if not from its very foundation, among its privileges and franchises, a place for the confinement of some classes of prisoners committed by its own officers, and that the same privilege and franchise has continued by succession to the present time, and so made the place a lawful prison for the purpose to which

(a) See the 21 & 22 Vict. c. 22.

it was applied. In *The Queen v. Archdall*, 8 Ad. & E. 281, 3 Nev. & P. 696, the right of the vice-chancellor to have the sole control over granting licences for the sale of beer in Cambridge, was disputed; and the judgment was for the university, for reasons which may be adopted in the present case. The court there took notice that a control of the most absolute kind in certain respects was necessary for the preservation of discipline and morals, and the prevention of the disorder which the age and dispositions of the younger students would tend to produce; that the university, generally a favoured body, was not unlikely to procure from the Crown what might reasonably be asked for, and, being a learned body, would procure it in such a form as would render the grant valid. The court further felt itself bound to presume in favour of the existing user, and refused to call on the vice-chancellor to justify the exercise of an ancient practice. If the place was lawful, it was not contended that the treatment therein would, upon these pleadings and this evidence, constitute a substantive cause of action against the defendant.

For these reasons, we think that the defendant is entitled to make the rule absolute to enter the verdict for him, pursuant to the leave reserved at the close of the plaintiff's case. We consider that the replication, admitting the statute which confirmed the charter set out in the plea as fully as if it was repeated verbatim therein, admitted the charter as set out. But, if it was not thereby admitted, then, on giving the charter in evidence, the right of the defendant would be the same.

The other part of the rule,—for entering the verdict for the defendant upon the special finding of the jury,—is thus rendered immaterial: but the general importance of the case induces us to make some remarks upon the phases which it presents from this latter point of view. The contested allegations in the plea were disposed of separately at the trial. The construction of the charter, and the absence of a warrant, were within the province of the judge, and not for the jury. Of the other allegations, three only were required to be left to the jury separately, viz. first, whether the proctors had reasonable cause for suspicion of the plaintiff; secondly, whether the vice-chancellor [559] heard and examined the plaintiff; thirdly, whether the place of imprisonment, and the treatment therein, were lawful. The jury found that the proctors had reasonable cause for suspicion, and that the complaint of the prison and the treatment therein was unfounded: but, in respect of the hearing and the examination of the plaintiff, they found that the defendant had not made due inquiry into her character, and (a matter clearly beyond their province) that the punishment was undeserved. This finding of the jury must be considered together with the course of proceeding at the trial.

The facts deposed to by the plaintiff, were, for the most part, undisputed,—being confirmed by the evidence for the defendant. In respect of the facts themselves, there was no question: in respect of the effect of those facts, there was contest. Thus, the circumstances of the apprehension were not in dispute; but the contest was, whether, under those circumstances, the proctors had reasonable cause for suspicion. Thus, also, the statement of the plaintiff, that the vice-chancellor made inquiries of her, and heard her answers, was not in dispute; but the contest was, whether he had a right to put those inquiries to her, or to decide without hearing testimony on oath, or to decide without sending to refer to the persons mentioned by the plaintiff as knowing her character. The allegation was that the defendant heard and examined the plaintiff. The plaintiff contended that the jury ought not to find that he had done so, if they were of opinion that the hearing and examination was not properly conducted in all or either of these respects. It appears by the finding, and by what passed at the time of the verdict, that the jury were of opinion that the hearing was not properly conducted in this respect,—that the defendant did not make due inquiry into the plaintiff's character. [560] Now, although they meant their finding to support the plaintiff's case, they did not mean to do so at the expense of truth, nor to disaffirm the plaintiff's account of what passed between her and the defendant when she was brought before him. It was accepted as an imperfect verdict, rather than that the trial should be rendered abortive by reason of the jury not coming to an agreement: and we consider we give effect to the intention of the jury if we put this construction upon the whole of their finding,—that all the allegations in the plea are proved, with this exception, that, after the hearing, the defendant did not make such due inquiry into the plaintiff's character as he was in their opinion bound to do. In this sense, it certainly did not amount to a verdict for the plaintiff, because there is no issue